

CHAPTER – 7

TRANSFER OF PROPERTY ACT, 1882

Sr. No	Property	Transfer between	Act
1	Immovable property	Living to living	<u>Transfer of property Act, 1882</u>
2	Movable property	Living to living	<u>Sale of goods Act, 1930</u>
3	Immovable property and Movable property	Dead to living	<u>Indian Succession Act, 1925</u>

- 1. Sale of immovable property:** There is a transfer of ownership from the buyer to the seller in exchange for the price. Delivery of tangible property from the seller to the buyer.
- 2. Mortgage of immovable property:** The property gets transferred from the buyer to the seller in the form of a mortgage where the immovable property is mortgaged to secure a loan. The mortgagor has to pay the principal loan along with the interest to release the immovable property from the mortgage.
- 3. Leases of immovable property:** The possession of the property is being transferred from one person to another person for a fixed price in this scenario there is no transfer of ownership.
- 4. Exchange of immovable property:** When two persons mutually decide to transfer immovable property it would be referred to as an exchange of property.
- 5. Gift of immovable property:** According to the transfer of property Act, 1882, gift refers to a transfer of movable or immovable property violently or without the consideration, by one person that is donee, to donor transfer is accepted by and on behalf of the donee.